AGREEMENT TEMPLATE

Software and Services License Agreement

Between the business, as Licensor, and a client, as Licensee, for the AI data center software and services

Software da Database User 13

> Template for review. This document is a starting point, not legal advice. Have it reviewed by a licensed attorney in your jurisdiction before you sign or rely on it.

This Software and Services License Agreement (this "**Agreement**") is made on [EFFECTIVE DATE] (the "**Effective Date**") between the Licensor and the Licensee named in clause 1.

Licensor operates an AI data center and the software that runs it. Licensee wishes to use that software and the services provided with it, and Licensor is willing to provide them on the terms of this Agreement.

Completing this template

- Complete or strike out every highlighted [BRACKETED BLANK] and every blank line before signature. No blank has a default value.
- Schedule 1 lists the 28 services Licensor offered on October 18, 2026; check it against the Fee Schedule named in the Order Form.
- The periods for logs, export, deletion, incident notice and audit-log delivery follow Licensor's knowledge-base articles "Client data handling and retention", "Client FAQ: how your data is used", "Audit logging requirements" and "Incident response for AI systems". Change them there or in an Order Form, not by editing one copy of this template.
- Contract, data protection, consumer and tax law differ between jurisdictions. Some clauses may need changes, or may not be enforceable, where the Parties are, and whether the choice of law and forum in clause 14 will be enforced depends on the Parties and the claim. A licensed attorney should review the whole Agreement before it is signed.

1. Parties

1.1 This Agreement is between the following parties.

Licensor

Legal name _____

Entity type _____

State of organization _____

Principal address _____

_____

Contact for notices _____

Notice email _____

Licensee

Legal name _____

Entity type _____

Jurisdiction of organization _____

Principal address _____

_____

Contact for notices _____

Notice email _____

1.2 Each is a “**Party**” and together they are the “**Parties**”. A Party may change its notice details by giving notice to the other under clause 15.4.

2. Definitions

2.1 In this Agreement:

“AI Output” means any text, code, embedding, classification, transcription or other content that a model produces through the Services in response to Client Data or to instructions from Licensee or its Authorized Users.

“Authorized Users” means Licensee's employees and contractors whom Licensee permits to use the Services under its account.

“Client Data” means all data, documents, prompts, files and datasets that Licensee or its Authorized Users submit to the Services, and everything the Services derive from them for Licensee, including prompt and completion logs, embeddings, search indexes, evaluation sets, fine-tuned model checkpoints and AI Output.

“Confidential Information” means information one Party discloses to the other that is marked confidential or that a reasonable person would understand to be confidential. Client Data is Licensee's Confidential Information. The Software and any Documentation Licensor has not made public are Licensor's Confidential Information.

“Documentation” means the user guides, knowledge-base articles and technical descriptions of the Services that Licensor makes available to Licensee.

“Fee Code” means the code that identifies a service in the Fee Schedule and in Schedule 1.

“Fee Schedule” means Licensor's schedule of fees, which states a unit price, billing unit and minimum units for each Fee Code, in the version identified in the applicable Order Form.

“Order Form” means an ordering document signed by both Parties that lists the Services ordered by Fee Code, with quantities, start dates and terms.

“Platform” means the AI data center that Licensor operates under the name “Software da Database User 13”, including the hardware, network and facilities used to provide the Services.

“Services” means the services listed in Schedule 1 that Licensee orders in an Order Form. They fall into seven categories: compute, inference, storage, network, colocation, support and professional.

“Software” means Licensor's software that runs the Platform, including its seven databases (Contacts, Documents, Datasets, Model registry, Embeddings, Jobs and Audit), its command-line interface and web portal, and any updates Licensor makes generally available to its clients.

“Third-Party Model” means a model, dataset or software component owned by someone other than Licensor and made available through the Services, whether hosted on the Platform or reached through another provider's service.

2.2 **Interpretation.** “Including” means including without limitation. Headings are for convenience only. The singular includes the plural. References to clauses and Schedules are to those of this Agreement. A requirement for something in writing includes email, but not for a notice of breach or termination.

3. License grant and scope

3.1 **Grant.** Subject to this Agreement and to payment of the fees, Licensor grants Licensee, for the Term, a non-exclusive, non-transferable license, without the right to sublicense except under clause 3.3, for its Authorized Users to access and use the Software and the Services ordered in each Order Form, for Licensee's internal business purposes and within the quantities stated in that Order Form.

3.2 **Hosted delivery.** The Software is provided as a hosted service. Where Licensor supplies client-side tools, such as command-line tools or configuration files, Licensee may install and use them only to access the Services.

3.3 **Contractors.** Licensee may let its contractors use the Services on its behalf as Authorized Users. Licensee is responsible for every act and omission of its Authorized Users as if they were its own.

3.4 **Third-Party Models.** Some Services make Third-Party Models available. Each is subject to its own license terms, which Licensor shall identify in the Documentation or the Order Form before Licensee first uses it. Licensee shall comply with those terms, including any limits on field of use or on distributing outputs.

3.5 **Colocation.** Where an Order Form includes colocation services (Fee Codes SVC-021 and SVC-022), equipment Licensee installs at the Platform remains Licensee's property, and access to the data hall is subject to Licensor's site rules as given to Licensee in writing.

3.6 **Reservation of rights.** All rights not expressly granted in this Agreement are reserved by Licensor and its licensors.

4. Restrictions

4.1 Licensee shall not, and shall not permit anyone else to:

(a) copy, modify or create derivative works of the Software, except as the Documentation permits;

(b) reverse engineer, decompile or disassemble the Software, except to the extent applicable law permits this despite this restriction;

(c) sell, resell, rent, lease or sublicense the Services, or provide them to third parties as a service bureau, unless an Order Form expressly permits it;

(d) use the Services to build a competing product, or publish benchmarks of the Services, without Licensor's prior written consent;

(e) circumvent usage limits, access controls, logging or content filtering;

(f) scan, probe or test the security of the Platform, except under a written test scope agreed with Licensor in advance;

(g) introduce malicious code into the Platform, or interfere with its operation or with other clients' use of it; or

(h) use the Services or AI Output in breach of clause 6.

4.2 **Suspension.** If Licensee's use threatens the security or stability of the Platform, Licensor may suspend the affected Service as far as necessary to deal with the threat, giving notice beforehand where it can and otherwise promptly afterwards, and shall restore the Service once the threat is removed.

5. Client Data

5.1 **Ownership.** As between the Parties, Licensee owns all right, title and interest in Client Data. Licensor acquires no rights in Client Data other than the limited license in clause 5.2.

5.2 **Licensor's use.** Licensee grants Licensor a non-exclusive, royalty-free license, for the Term and any deletion period under clause 5.10, to host, copy, process and transmit Client Data only as needed to provide the Services to Licensee, to resolve Licensee's support requests and security incidents, and as Licensee otherwise instructs in writing.

5.3 **Purpose limitation.** Licensor shall use Client Data only for the purpose described in the applicable Order Form or statement of work. Any other use, including a new use within Licensee's own project, requires Licensee's prior written consent.

5.4 **No training without consent.** Licensor shall not use Client Data to train, fine-tune, evaluate or otherwise improve any model, or to build embedding indexes, evaluation sets or synthetic data, unless Licensee has given prior written consent to that specific use. Consent to one use does not extend to another. A model, checkpoint or index built from Client Data with that consent is used only for Licensee and is itself Client Data. Licensor shall never use Client Data, or anything built from it, for another client.

5.5 **Hosted model providers.** Where a Service sends Client Data to a Third-Party Model hosted by another provider, Licensor shall use only providers whose terms allow retention of prompts and training on customer data to be switched off, shall switch both off, and shall tell Licensee on request which providers each Service uses.

5.6 **Storage and access.** Licensor shall store Client Data in a project namespace dedicated to Licensee, encrypted at rest, and shall limit access to the Licensor personnel assigned to Licensee's project. Licensor shall not copy Client Data to laptops or personal devices. Licensor shall review that access at least quarterly and give Licensee the current list of people with access on request.

5.7 **Logs.** Prompt and completion logs from Licensee's deployments are kept for 30 days for troubleshooting and then deleted automatically.

5.8 **Personal data.** Licensee is responsible for having the rights, notices and consents needed to submit personal data to the Services and to have it processed as this Agreement describes, and shall identify in writing any dataset that contains sensitive personal data before submitting it. If Licensee tells Licensor that an individual's data must be removed, Licensor shall remove it from the source dataset, rebuild any index that included it, and tell Licensee which model versions were trained before the removal. Data protection law differs between jurisdictions and may call for further terms, such as a data processing agreement; any such terms are to be agreed in a separate document reviewed by each Party's attorney.

5.9 **Export.** Licensee may request an export of its Client Data at any time during the Term or the deletion period in clause 5.10. Licensor shall deliver the export within 10 business days in [EXPORT FORMAT].

5.10 **Deletion.** Licensee may ask for any Client Data to be deleted at any time. When this Agreement or an Order Form ends, Licensor shall delete the affected Client Data from its working systems within 30 days, and backups containing it shall age out within 90 days after that. Licensor does not edit backups selectively; Client Data held in a backup until it ages out remains subject to clauses 5 and 9. Licensor shall confirm each deletion in writing, listing the datasets, indexes and model checkpoints removed.

5.11 **Agreed retention.** Licensor shall keep Client Data beyond the periods in this clause only where an Order Form says so expressly, such as an evaluation set Licensee asks Licensor to keep as a baseline for future work.

5.12 **Standard periods.** The periods in clauses 5.7, 5.9 and 5.10 are Licensor's standard practice. The Parties may agree different periods in an Order Form.

6. AI outputs and acceptable use

6.1 **Nature of AI Output.** AI Output is produced by statistical models. It can be inaccurate, incomplete or inappropriate even when it reads as confident, the same input can produce different outputs, and other clients may receive similar outputs.

6.2 **Licensee's responsibility.** Licensee is responsible for reviewing AI Output before relying on it, publishing it or giving it to others, and for every decision it makes using AI Output. A person at Licensee shall review AI Output, and own the decision, before it is used in a decision that significantly affects an individual, such as a decision about employment, credit, housing, insurance, education, health care or legal rights.

6.3 **Prohibited uses.** Licensee shall not use the Services or AI Output:

(a) for any unlawful purpose, or in a way that infringes the intellectual property, privacy or other rights of others;

(b) to create or distribute malicious code, or to gain unauthorized access to systems or data;

(c) to defraud, deceive, harass or harm people, including by impersonating a person or by presenting AI Output as reviewed by a person when it was not;

(d) to create content that sexually exploits minors, or to help develop weapons capable of mass harm;

(e) to make decisions with legal or similarly significant effects on individuals without the human review required by clause 6.2; or

(f) in breach of the license terms of a Third-Party Model under clause 3.4.

6.4 **Enforcement.** If Licensor reasonably believes that a use breaches this clause, it may suspend the affected Service under clause 4.2. Licensor does not review Client Data or AI Output for compliance unless an Order Form says it will.

7. Fees and payment

7.1 **Fees.** Licensee shall pay, for each Service, the unit price shown against its Fee Code in the Fee Schedule identified in the applicable Order Form, for the quantities used or ordered. Schedule 1 lists the Fee Codes.

7.2 **Billing units.** Each Service is billed in the unit shown for it in Schedule 1, and never for fewer than the minimum units stated in the Fee Schedule. For example, Fee Code SVC-013 (Model fine-tuning run) is billed per gpu-hour with a minimum of 8 units.

7.3 **Invoicing and payment.** Licensor shall invoice [INVOICING FREQUENCY AND TIMING]. Licensee shall pay each invoice within [PAYMENT TERMS] of the invoice date by [PAYMENT METHOD]. Fees are stated in [CURRENCY].

7.4 **Disputed invoices.** Licensee may dispute an invoice in good faith by notice given within [DISPUTE PERIOD] of receiving it, stating the reasons, and shall pay the undisputed part when due. The Parties shall work to resolve the dispute promptly.

7.5 **Late payment.** Overdue amounts bear interest at [LATE PAYMENT RATE], but never more than the highest rate applicable law allows. If an undisputed amount is overdue for [PERIOD] after written notice, Licensor may suspend the Services until it is paid.

7.6 **Taxes.** Fees exclude taxes. Licensee shall pay any sales, use, value-added or similar taxes on the Services, other than taxes on Licensor's income. Which taxes apply depends on where the Parties and the Services are located; each Party should take its own tax advice.

7.7 **Changes to fees.** Licensor may change the Fee Schedule by giving at least [NOTICE PERIOD] written notice. A change applies to an Order Form only from its next renewal, and never to a committed term already running.

8. Service levels

8.1 **Support tiers.** Licensee's support level is set by the support services in its Order Form. The support services available, each listed in Schedule 1, are:

Fee Code	Support service	Billed per	Service description
SVC-023	Remote hands	hour	Billed in 15-minute increments.
SVC-024	Managed support, standard	month	Business hours, 4-hour response.
SVC-025	Managed support, 24/7	month	Round the clock, 1-hour response.

For each support service Licensee has ordered whose description states a response time, Licensor shall meet that response time.

8.2 **Response times.** A response time runs from Licensee's report through [SUPPORT CHANNEL] to the first response from a qualified Licensor engineer. It is not a time to resolve the issue. “Business hours” means [BUSINESS HOURS, DAYS AND TIME ZONE].

8.3 **Without a support tier.** If an Order Form includes no support service, Licensor shall provide support through the support channel on a reasonable-efforts basis, with no committed response time.

8.4 **Availability.** Licensor shall make each Service available at least [AVAILABILITY TARGET] of the time in each calendar month, excluding maintenance announced at least [NOTICE PERIOD] in advance and events under clause 15.5. If Licensor misses the target, Licensee is entitled to [SERVICE CREDITS].

8.5 **Recovery objectives.** The recovery point objective and recovery time objective for each of Licensee's deployments shall be stated in the Order Form. If an event exceeds either, Licensor's incident report shall say so and explain why.

9. Security and confidentiality

9.1 **Security measures.** Licensor shall maintain administrative, technical and physical safeguards designed to protect Client Data, including encryption at rest, access granted per project on a least-privilege basis and reviewed regularly, an audit log of access changes and data events, and encrypted backups stored separately from the primary systems.

9.2 **Audit log.** Licensee may request the audit log for its project at any time, and Licensor shall deliver it within 5 business days. Audit entries record who did what and when, not the content of Client Data.

9.3 **Security incidents.** Licensor shall notify Licensee within 24 hours of confirming that Client Data has been accessed by, or disclosed to, anyone not authorized under this Agreement, and shall give Licensee a written summary within 5 business days of confirmation, describing what happened, the data affected and the steps taken. Whether either Party must also notify regulators or individuals depends on the law that applies; the Parties shall cooperate on any such notice.

9.4 **Licensee's security.** Licensee is responsible for keeping its credentials and keys secret, for the devices and networks its Authorized Users use, and for telling Licensor promptly if it suspects a credential has been compromised.

9.5 **Confidentiality.** Each Party that receives Confidential Information shall keep it confidential, use it only to perform this Agreement or exercise its rights under it, and disclose it only to its personnel, contractors and professional advisers who need to know it and are bound by confidentiality duties at least as protective as this clause.

9.6 **Exceptions.** Clause 9.5 does not apply to information that is or becomes public through no fault of the receiving Party, that the receiving Party already lawfully knew, that it develops independently, or that it receives from a third party free to disclose it. This exception never applies to Client Data.

9.7 **Required disclosure.** A Party may disclose Confidential Information when required by law or by a court or other authority, after giving the other Party notice where the law allows, and only to the extent required.

9.8 **Duration.** The duties in this clause continue for [PERIOD] after this Agreement ends, and for Client Data and trade secrets for as long as they remain confidential.

10. Intellectual property

10.1 **Licensor's property.** Licensor and its licensors own the Software, the Platform, the Documentation and all improvements to them, including anything Licensor develops while providing the Services, but excluding Client Data.

10.2 **Licensee's property.** As between the Parties, Licensee owns Client Data, including AI Output, and Licensor assigns to Licensee any rights it may have in AI Output. Whether AI Output is protected by intellectual property rights depends on the law that applies, and Licensor does not promise that it is.

10.3 **Fine-tuned models.** Model weights that a fine-tuning service (Fee Code SVC-013) produces from Client Data are Client Data, subject to the license terms of the Third-Party Model they were built from. Licensor shall export them to Licensee on request where those terms allow.

10.4 **Feedback.** Licensor may freely use suggestions and feedback about the Services, provided that doing so does not disclose Client Data or Licensee's other Confidential Information.

10.5 **Usage measurements.** Licensor may record usage measurements, such as compute hours, tokens processed and storage used, to bill, plan capacity and operate the Platform. Usage measurements do not include the content of Client Data, and Licensor shall not disclose them in a form that identifies Licensee.

11. Warranties and disclaimers

11.1 **Authority.** Each Party warrants that it has the authority to enter into and perform this Agreement.

11.2 **Services.** Licensor warrants that the Services will perform materially as described in the Documentation, and that it will provide professional services with reasonable skill and care. If Licensee notifies a breach of this warranty within [WARRANTY CLAIM PERIOD], Licensor shall correct the Service or re-perform the work; if it cannot do so within a reasonable time, either Party may end the affected Service and Licensor shall refund any fees prepaid for the period after it ends.

11.3 **Client Data.** Licensee warrants that it has the rights needed to submit Client Data to the Services and to have it processed under this Agreement, and that its use of the Services complies with clause 6.

11.4 **Disclaimer. Except as expressly stated in this Agreement, the Software, the Services and AI Output are provided "as is". Licensor does not warrant that the Services will be uninterrupted or error-free, or that AI Output will be accurate, complete or fit for any purpose, and disclaims all implied warranties, including merchantability, fitness for a particular purpose and non-infringement.** Some jurisdictions limit how far implied warranties can be excluded and how such an exclusion must be presented; this clause applies only to the extent the law that applies allows.

12. Limitation of liability

12.1 **Cap.** Each Party's total liability arising out of or relating to this Agreement, whether in contract, tort or otherwise, shall not exceed [LIABILITY CAP].

12.2 **Excluded losses.** Neither Party is liable for loss of profits, revenue or goodwill, or for indirect, special, incidental, consequential or punitive damages, even if it was told they were possible.

12.3 **Exceptions.** Clauses 12.1 and 12.2 do not apply to [EXCLUSIONS FROM THE CAP], or to any liability that cannot be limited or excluded under the law that applies. How far liability can be limited differs between jurisdictions and types of claim, and this clause applies only to the extent that law allows.

13. Term and termination

13.1 **Term.** This Agreement starts on the Effective Date and continues for [INITIAL TERM] (with each renewal, the "**Term**"). It then renews for successive periods of [RENEWAL PERIOD] unless either Party gives at least [NOTICE PERIOD] written notice of non-renewal before the end of the current period. Each Order Form runs for the term stated in it, and this Agreement continues to govern an Order Form until that Order Form ends.

13.2 **Termination for breach.** Either Party may terminate this Agreement or an affected Order Form by written notice if the other Party materially breaches it and does not cure the breach within [CURE PERIOD] after receiving written notice describing it.

13.3 **Insolvency.** Either Party may terminate this Agreement by written notice if the other Party becomes insolvent, makes a general assignment for the benefit of its creditors, or becomes subject to bankruptcy, receivership or similar proceedings, to the extent the law that applies allows termination on those grounds.

13.4 **Effect of termination.** When this Agreement or an Order Form ends: Licensee's right to use the affected Services ends; Licensee shall pay all fees accrued up to the end date; Client Data is exported and deleted under clauses 5.9 and 5.10; and each Party shall return or destroy the other's Confidential Information, subject to backups aging out as clause 5.10 describes.

13.5 **Survival.** Clauses 5, 7 (for amounts owed), 9, 10, 11.4, 12, 13.4, 14 and 15 survive the end of this Agreement.

14. Governing law and disputes

14.1 **Governing law.** This Agreement is governed by the laws of [GOVERNING LAW JURISDICTION], without regard to its conflict-of-laws rules.

14.2 **Escalation.** A Party with a dispute shall give the other written notice of it. Senior representatives of both Parties shall try in good faith to resolve it for [PERIOD] after the notice before either Party starts proceedings.

14.3 **Forum.** A dispute not resolved under the escalation process shall be decided by [COURTS OF A NAMED VENUE, OR ARBITRATION UNDER NAMED RULES AND SEAT].

14.4 **Urgent relief.** Either Party may seek urgent injunctive or similar relief from a court of competent jurisdiction to protect its Confidential Information or intellectual property.

15. General

15.1 **Entire agreement.** This Agreement, its Schedules, each Order Form and the Fee Schedule an Order Form identifies are the entire agreement between the Parties on their subject. If they conflict, this Agreement prevails, then Schedule 1, then the Fee Schedule, unless an Order Form expressly overrides a named clause for the Services in that Order Form.

15.2 **Amendment.** A change to this Agreement is valid only in writing signed by both Parties.

15.3 **Assignment.** Neither Party may assign this Agreement without the other's written consent, which shall not be unreasonably withheld, except to a successor in a merger or a sale of substantially all of its business, on written notice to the other Party.

15.4 **Notices.** Notices are to be sent to the contact and address in clause 1. Routine notices may be sent by email. A notice of breach, termination or dispute must also be sent by [NOTICE METHOD].

15.5 **Force majeure.** Neither Party is liable for a failure or delay caused by events beyond its reasonable control, such as natural disasters, utility or network failures outside the Platform, or acts of government, provided it notifies the other Party promptly and works to limit the effect. This clause does not excuse a payment obligation.

15.6 **Subcontractors.** Licensor may use subcontractors to provide the Services and remains responsible for them. On request, Licensor shall identify each subcontractor that processes Client Data.

15.7 **Relationship.** The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture, agency or employment relationship.

15.8 **Export and sanctions.** Each Party shall comply with the export control and sanctions laws that apply to it in connection with the Services.

15.9 **Severability and waiver.** If a provision is held unenforceable, it applies to the extent it is enforceable and the rest of this Agreement continues. Delay in exercising a right does not waive it.

15.10 **Counterparts.** This Agreement may be signed in counterparts, and electronically to the extent the law that applies recognizes electronic signatures. Together the counterparts form one agreement.

16. Signatures

16.1 Signed by the authorized representative of each Party, effective on the Effective Date.

Licensor

Legal name of party _____

Signature _____

Name _____

Title _____

Date _____

Licensee

Legal name of party _____

Signature _____

Name _____

Title _____

Date _____

Schedule 1. Services and Fee Codes

The 28 services in seven categories that an Order Form may order under this Agreement, as Licensor offered them on October 18, 2026. Unit prices and minimum units are in the Fee Schedule. The last column gives the clauses of this Agreement that name a Fee Code; 6 of the 28 are named in a clause.

Fee Code	Service	Category	Billing unit	Clause
SVC-001	Dedicated H100 80GB GPU	compute	gpu-month	–
SVC-002	Dedicated A100 80GB GPU	compute	gpu-month	–
SVC-003	Dedicated L40S GPU	compute	gpu-month	–
SVC-004	On-demand H100 80GB	compute	gpu-hour	–
SVC-005	On-demand A100 80GB	compute	gpu-hour	–
SVC-006	On-demand L4	compute	gpu-hour	–
SVC-007	CPU compute node	compute	node-month	–
SVC-008	Inference, input tokens	inference	million-tokens	–
SVC-009	Inference, output tokens	inference	million-tokens	–
SVC-010	Embedding generation	inference	million-tokens	–
SVC-011	Rerank requests	inference	thousand-requests	–
SVC-012	Speech-to-text	inference	audio-hour	–
SVC-013	Model fine-tuning run	inference	gpu-hour	7.2, 10.3
SVC-014	Block storage, hot tier	storage	tb-month	–
SVC-015	Object storage, warm tier	storage	tb-month	–
SVC-016	Archive storage, cold tier	storage	tb-month	–
SVC-017	Archive retrieval	storage	tb	–
SVC-018	Backup retention, off-site	storage	tb-month	–
SVC-019	Egress bandwidth	network	tb	–
SVC-020	Private cross-connect	network	port-month	–
SVC-021	Rack colocation, full cabinet	colocation	rack-month	3.5
SVC-022	Additional power draw	colocation	kw-month	3.5
SVC-023	Remote hands	support	hour	8.1
SVC-024	Managed support, standard	support	month	8.1
SVC-025	Managed support, 24/7	support	month	8.1
SVC-026	Security audit engagement	professional	engagement	–
SVC-027	Onboarding and migration	professional	engagement	–
SVC-028	Compliance evidence pack	professional	year	–